



CHAPTER 19

An Act to dispense with the consent of the Minister of Health to the appointment under the Local Government Act, 1933, or the London Government Act, 1939, of deputies of medical officers of health and deputies of public health inspectors.

[17th April, 1957]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) For the proviso to subsection (1) of section one hundred and fifteen of the Local Government Act, 1933 (which requires the consent of the Minister of Health to the appointment by a local authority outside the administrative county of London of a deputy of a medical officer of health appointed by them under Part IV of that Act or of a public health inspector so appointed and prohibits the appointment, as deputy of a medical officer of health so appointed, of a person who is not a duly qualified medical practitioner), there shall be substituted the following proviso:—

Dispensation with consent of Minister of Health to appointment of deputies of medical officers of health and of public health inspectors.

“ Provided that a person shall not be appointed a deputy medical officer of health unless he is a duly qualified medical practitioner ”.

23 & 24 Geo. 5.
c. 51.

(2) For the proviso to subsection (1) of section one hundred and sixteen of the said Act of 1933 (which requires the like consent to the appointment by such an authority as aforesaid of

a person to act temporarily in place of a medical officer of health appointed as aforesaid or of a public health inspector so appointed and prohibits the appointment, to act temporarily in place of a medical officer of health so appointed, of a person who is not a duly qualified medical practitioner), there shall be substituted the following proviso:—

“ Provided that a person shall not be appointed to act in place of a medical officer of health unless he is a duly qualified medical practitioner ”.

2 & 3 Geo. 6.
c. 40.

(3) Paragraph (b) of the proviso to subsection (1) of section eighty-two of the London Government Act, 1939, and paragraph (b) of the proviso to subsection (1) of section eighty-three of that Act (which, as applied by section ninety-six of that Act, require the like consent to the appointment by a metropolitan borough council, the common council of the City of London, the port health authority of the Port of London or the overseers of the Inner or Middle Temple of a person to be a deputy of, or to act temporarily in place of, a medical officer of health appointed by them under Part IV of that Act or a public health inspector so appointed) shall cease to have effect.

Short title.

2. This Act may be cited as the Public Health Officers (Deputies) Act, 1957.

PRINTED BY SIR JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 3d. net

PRINTED IN GREAT BRITAIN

(38462)

House of Commons Disqualification Act 1957

5 & 6 ELIZ. 2 CH. 20

[The Act is printed, as amended, pursuant to sections 5 and 10 of the Act. The amendments are those in force on the 6th April 1975.]

ARRANGEMENT OF SECTIONS

Section

1. Disqualification of holders of certain offices and places.
2. Ministerial offices.
3. Reserve and auxiliary forces, etc.
4. Stewardship of Chiltern Hundreds, etc.
5. Provision for amendment of Schedule 1.
6. Effects of disqualification and provision for relief.
7. Jurisdiction of Privy Council as to disqualification.
8. Relaxation of obligation to accept office.
9. Repeal of disqualification of Crown pensioners and Crown contractors.
10. Provisions relating to Northern Ireland Assembly.
11. Amendment of Parliamentary Elections Rules.
12.
13. Interpretation.
14. Repeals.
15. Short title.

SCHEDULES:

Schedule 1—Offices disqualifying for membership.

Part I—Judicial offices.

Part II—Commissions, Tribunals and other bodies
of which all members are disqualified.

Part III—Other disqualifying offices.

Part IV—Offices disqualifying for particular con-
stituencies.

Schedule 2—Ministerial offices.

Schedule 3—Provisions substituted for Parts II and III of
Schedule 1 in relation to Northern Ireland Assembly.

Schedule 4—

[The Act is printed, as amended, pursuant to sections 5 and 10 of the Act. The amendments are those in force on the 6th April 1975.]



CHAPTER 20

An Act to make provision for disqualifying the holders of specified offices for membership of the House of Commons, and to repeal the enactments providing for the disqualification of the holders of offices or places of profit under the Crown and other offices, of persons having pensions from the Crown and of persons contracting with the Crown for or on account of the public service, and certain enactments disqualifying members of that House for holding other offices; to make corresponding provision in respect of the Senate and House of Commons of Northern Ireland; and for purposes connected with the matters aforesaid.

[17th April 1957]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this Act, a person is disqualified for membership of the House of Commons who for the time being—

- (a) holds any of the judicial offices specified in Part I of Schedule 1 to this Act;
- (b) is employed in the civil service of the Crown, whether in an established capacity or not, and whether for the whole or part of his time;
- (c) is a member of any of the regular armed forces of the Crown;

Disqualifica-
tion of holders
of certain
offices and
places.